

Explanatory Statement

1. Authority

Section 13 of the *Food Standards Australia New Zealand Act 1991* (the FSANZ Act) provides that the functions of Food Standards Australia New Zealand (the Authority) include the development of standards and variations of standards for inclusion in the *Australia New Zealand Food Standards Code* (the existing Code).

Division 2 of Part 3 of the FSANZ Act specifies that the Authority may prepare a proposal for the development or variation of food regulatory measures, including standards. This Division also stipulates the procedure for considering a proposal for the development or variation of food regulatory measures.

FSANZ has published a revision of the existing Code (the P1025 Code). The P1025 Code will replace the existing Code on 1 March 2016, when the existing Code will be repealed.

FSANZ prepared Proposal P1036 to amend the P1025 Code to incorporate variations to the existing Code arising from A1092, A1096, P1022 and P1029 (subject to their publication) and to correct minor errors in the published P1025 Code. The Authority has considered the Proposal in accordance with Division 2 of Part 3 and has approved a draft variation.

Following consideration by the Australia and New Zealand Ministerial Forum on Food Regulation¹, section 92 of the FSANZ Act stipulates that the Authority must publish a notice about the standard or draft variation of a standard.

Section 94 of the FSANZ Act specifies that a standard, or a variation of a standard, in relation to which a notice is published under section 92 is a legislative instrument, but is not subject to parliamentary disallowance or sunseting under the *Legislative Instruments Act 2003*.

2. Purpose

The Authority has approved the draft variation to incorporate, into the P1025 Code, variations made to the existing Code that were previously approved by the Board in A1092, A1096, P1022 and P1029 and which have since been published; and to correct the following errors:

- minor typographical errors
- errors made in the previous incorporation, into the P1025 Code, of variations to the existing Code arising from Applications and Proposals other than those mentioned above.

3. Documents incorporated by reference

The variation to the P1025 Code does not incorporate any documents by reference not already incorporated into the existing Code.

4. Consultation

In accordance with the procedure in Division 2 of Part 3 of the FSANZ Act, the Authority's consideration of P1036 included one round of consultation with appropriate government agencies following an assessment and the preparation of a draft variation and associated report.

¹ convening as the Australia and New Zealand Food Regulation Ministerial Council

Because the amendments affect a wide range of FSANZ's stakeholders, the call for submissions was also notified in FSANZ's Notification Circular to ensure all stakeholders were included in the call for submissions.

A Regulation Impact Statement was not required because the proposed variation to the P1025 Code is likely to have a minor impact on business and individuals. Proposal P1036 is considered to be an extension of the permission for the original code reform proposal P1025 (OBPR reference 14493).

5. Statement of compatibility with human rights

This instrument is exempt from the requirements for a statement of compatibility with human rights as it is a non-disallowable instrument under section 94 of the FSANZ Act.

6. Variation

Subsection 1.1.1—2(2)

Item [1] corrects references to the headings of the following Standards and Schedules, to correct transcription errors:

- Standard 1.2.6
- Standard 1.2.10
- Standard 1.2.11
- Standard 2.8.1
- Schedule 14
- Schedule 16
- Schedule 27
- Schedule 28.

Subsection 1.1.1—13(2) (Note 1)

Item [2] replaces '**Note 1**' with '**Note**', to correct a numbering error.

Subsection 1.1.1—13(3) (First example)

Item [3] replaces '**Example**' with '**Example 1**', to correct a numbering error.

Paragraph 1.1.2—7(2)(a) (definition of acute care hospital)

Item [4] replaces 'ailments,' with 'ailments', to correct a typographical error.

Subsection 1.2.1—6(3)

Item [5] replaces '*individual portion pack' with 'individual portion pack', to correct a typographical error.

Paragraph 1.2.1—16(3)(b)

Item [6] replaces 'paragraph 1.2.1—8(1)(k)' with 'paragraph 1.2.1—8(1)(j)', to correct a typographical error.

Section 1.2.1—17

Item [7] replaces ‘*caterer’ (second occurrence) with ‘caterer’, to correct a typographical error.

Subparagraph 1.2.5—3(1)(b)(i)

Item [8] replaces ‘best-before date’ with ‘*best-before date’, to correct a typographical error.

Sub-subparagraph 1.2.5—3(1)(b)(ii)(A)

Item [9] replaces ‘*best-before date’ with ‘best-before date’, to correct a typographical error.

Section 1.2.7—2 (Note 1 - definition of nutrient profiling score)

Item [10] replaces ‘section 1.2.7—26’ with ‘section 1.2.7—25, to correct a typographical error’.

Subsections 1.2.7—4(1) and (2)

Item [11] replaces ‘*nutrition content claim’ with ‘nutrition content claim’, to correct a typographical error.

Subsections 1.2.7—12(2) and (3)

Item [12] replaces ‘*claim’ with ‘claim’, to correct a typographical error.

Subsections 1.2.7—12(5), (6) and (7)

Item [13] replaces ‘*nutrition content claim’ with ‘nutrition content claim’, to correct a typographical error.

Subsection 1.2.7—13(1)

Item [14] replaces ‘*nutrition content claim’ with ‘nutrition content claim’, to correct a typographical error.

Subsection 1.2.7—14(1)

Item [15] replaces ‘*nutrition content claim’ with ‘nutrition content claim’, to correct a typographical error.

Section 1.2.7—15

Item [16] replaces ‘*nutrition content claim’ with ‘nutrition content claim’, to correct a typographical error.

Section 1.2.7—16 (first unnumbered subsection)

Item [17] inserts a number to the first unnumbered subsection, to correct a numbering error.

Paragraph 1.2.7—18(1)(a)

Item [18] replaces ‘meets the NPSC’ with ‘*meets the NPSC’, to correct a typographical error.